

PA.1 Who Inspects Your House

Whether the Uniform Construction Code reaches your project, who is responsible for enforcing it where you are building, and what you must do if the answer is nobody yet.

Before you use this document

This is a process reference, not legal advice. Pennsylvania is not a no-code state and it is not a no-inspection state: the Uniform Construction Code applies to every house in the Commonwealth, and five inspections are required on every one of them. What changes from one municipality to the next is *who performs them* — a municipal code official, an agency the municipality retained, or, where the municipality elected not to administer the code at all, an agency **you** hire yourself. Fees, review queues and the local permits stacked on top of the building permit vary too. Confirm every item with the office that will actually handle your parcel before you rely on it.

Start with the sentence that settles the question most guides spend a page hedging. The Pennsylvania Construction Code Act applies to **“the construction, alteration, repair and occupancy of all buildings in this Commonwealth”** (35 P.S. § 7210.104(a)). There is no rural exception, no acreage exception and no county that has escaped it. If you are building a house in Pennsylvania, the Uniform Construction Code (UCC) is the code it must meet.

What varies — and it varies enormously — is **who administers and enforces that code on your lot**. The Act hands each municipality a menu, and one of the choices is to decline the job altogether. Where a municipality has declined, the code still binds your house and the required inspections still have to happen; the difference is that the Commonwealth has assigned the duty of going out and hiring an inspector to **you**.

The error this document exists to correct

“Opting out” is the single most misreported fact in Pennsylvania homebuilding. It does not mean the code stops applying, and it does not mean the inspections stop. It means the municipality is not running the program — so there is no office to call, no permit desk to walk into, and no one who will notice that your house was never inspected until a buyer's lender, a title company or an insurance underwriter asks for the certificate of occupancy you never obtained.

FIRST: IS YOUR PROJECT INSIDE THE CODE AT ALL

A short list of construction sits outside the UCC entirely. This is the real exemption list in Pennsylvania, and it is worth reading before you assume your project is on it — most of it is accessory and agricultural work, not houses.

Construction the UCC does not reach

Category	What the exclusion covers	Authority
Accessory structures	Carports, detached private garages, greenhouses and sheds, if the building area is under 1,000 sq ft and the structure is accessory to a detached one-family dwelling. A municipal ordinance may still reach it.	34 Pa. Code § 403.1(b)(3)
Agricultural buildings	Excluded outright. The Act defines the term, and a building used for a dwelling is not one.	35 P.S. § 7210.104(b)(4)
Recreational cabins	Excluded if the structure meets a seven-part definition and the owner files an affidavit or proof of insurance with the municipality. See the box below — the test is strict.	35 P.S. § 7210.104(b)(7)
On-lot sewage systems	Not a UCC subject at all. Your septic system is governed by 25 Pa. Code Chapter 73 and permitted by a sewage enforcement officer, on a separate track. See PA.4.	34 Pa. Code § 403.21(e)
Repairs and most alterations	Repairs to residential buildings, and alterations that make no structural change and no change to means of egress. Replacing a window or door is expressly not a structural change.	35 P.S. § 7210.104(b)(5), (6)
Propane fuel systems	Tubing, piping, appliances, equipment and fixtures for liquefied petroleum gas are regulated under their own act, not the UCC.	34 Pa. Code § 403.1(b)(6)
Manufactured housing	Units shipped from the factory under § 7210.901(a) are handled under § 403.25, not as site-built construction.	34 Pa. Code § 403.1(b)(5)

The recreational cabin test — all seven parts must be true

A “recreational cabin” is excluded from the Act altogether, which makes it the one genuine way to build a structure in Pennsylvania with no UCC permit and no UCC inspections. The definition at 35 P.S. § 7210.103 is deliberately narrow, and every part of it has to hold. A structure which is:

(1) utilized principally for recreational activity; (2) not utilized as a domicile or residence for any individual for any time period; (3) not utilized for commercial purposes; (4) not greater than two stories in height, excluding basement; (5) not utilized by the owner or any other person as a place of employment; (6) not a mailing address for bills and correspondence; and (7) not listed as an individual's place of residence on a tax return, driver's license, car registration or voter registration.

Read part (2) carefully before you plan around this. A cabin you sleep in on weekends is still not a domicile; a cabin you move into while you build the real house is. The exclusion is not self-executing either: under § 7210.104(b)(7)(ii) the owner must file with the municipality **either** an affidavit on the Department's prescribed form attesting that the structure meets the definition, **or** valid proof of insurance from an insurer authorized to do business in Pennsylvania stating the same thing. File nothing and you have not claimed the exclusion.

THE SIX WAYS A MUNICIPALITY HANDLES THE CODE

Section 7210.501(b) gives a municipality that has adopted the enforcing ordinance five ways to run the program. Section 7210.501(e) covers the sixth case — the municipality that never adopted one. **One phone call to the municipal office tells you which of these you are in, and it is the most valuable call you will make all year.**

How enforcement is arranged — 35 P.S. §§ 7210.501(b) and 7210.501(e)

	Arrangement	What it means for you
1	Its own employee	The municipality designates an employee as its municipal code official. You deal with a township, borough or city office.
2	A retained third-party agency	The municipality retains one or more code officials or private agencies to act <i>on its behalf</i> . You still apply at the municipal office; the inspector arrives from a company. The municipality chose and pays them, not you.
3	A joint program with neighbors	Two or more municipalities administer the code together under an intergovernmental agreement. Your permit may be issued from the next township over.
4	A contract with another municipality	One municipality buys the service from another. That municipality's code official then holds full authority in yours.
5	An agreement with L&I	Available only for buildings <i>other than</i> one- and two-family dwellings. The Department does not review or inspect houses under this option , which is why L&I is not the answer for your project.
6	Elected not to administer	The municipality adopted no enforcing ordinance. There is no municipal building department for the UCC. You must obtain the services of a certified third-party agency for plan review and inspections. The next section is entirely about this case.

Paths 1–5 are 35 P.S. § 7210.501(b)(1)–(5). Path 6 is 35 P.S. § 7210.501(e)(1) and 34 Pa. Code § 403.103. Note the asymmetry in path 5: § 7210.501(b)(5) lets a municipality contract with the Department only for “structures other than one-family or two-family dwelling units and utility and miscellaneous use structures.”

IF YOUR MUNICIPALITY ELECTED NOT TO ADMINISTER

This is the case the rest of the internet gets wrong, so here is the regulation itself. 34 Pa. Code § 403.103(b), in full:

34 Pa. Code § 403.103(b)

“An applicant for a residential building permit shall obtain the services of a third-party agency certified in the appropriate categories to conduct the plan review and inspections under §§ 403.61—403.66 (relating to permit and inspection process for residential buildings).”

Three things follow from that sentence, and each of them costs money or time if you learn it late.

- **The inspection requirements do not change.** The cross-reference is to §§ 403.61—403.66 — the same sections that govern a house in a municipality with a full building department. Same code, same five inspections, same certificate of occupancy. The statute is explicit about the list even in the opt-out case: 35 P.S. § 7210.501(e)(1) names foundation; plumbing, mechanical and electrical; frame and masonry; wallboard; and final.
- **The agency does your plan review too, not just your inspections.** So it has to be engaged before you build, not when you are ready for a footing inspection. A certified agency is a private business with no obligation to take your job.
- **L&I is not your fallback.** Under § 403.103(g) the Department picks up buildings *other than* residential in an opt-out municipality — commercial work, in practice. L&I's own UCC page puts it plainly: “Certified third party agencies hired by property owners (or their contractors) enforce the residential requirements of the UCC in all opt-out municipalities.”

If you are in an opt-out municipality — do these in order

	Item	Date	Confirmed with / notes
☐	Confirm in writing that the municipality has not adopted a UCC enforcement ordinance. Ask for the notice § 7210.501(e)(1) requires the municipality to give you.		
☐	Ask the municipality which local permits it <i>does</i> still issue — zoning, driveway, stormwater and sewage are municipal and are unaffected by the UCC election.		
☐	Obtain L&I's list of certified third-party agencies and identify those serving your county (see PA.4).		
☐	Confirm the agency is certified in the categories your job needs — the regulation says “certified in the appropriate categories,” and the categories are separate for building, electrical, plumbing and mechanical.		

If you are in an opt-out municipality — do these in order

	Item	Date	Confirmed with / notes
☐	Get a written scope and fee: plan review, the five inspections, re-inspection charges, and who issues the certificate of occupancy.		
☐	Confirm the agency has no financial interest in your project — a code administrator may not review or approve work in which he has one (35 P.S. § 7210.502(c)).		
☐	Confirm the agency will send the final inspection report to you, your builder and your lender, and file the certificate of occupancy with the municipality (34 Pa. Code §§ 403.103(f), 403.65(e)).		

WHAT NOBODY CAN ASK YOU FOR: A CONTRACTOR LICENSE

Pennsylvania issues no general contractor license of any kind — not to you, and not to the people you hire. The Department of Labor & Industry states it in one sentence on its own contractor licensing page: **“The Commonwealth of Pennsylvania currently has no licensure or certification requirements for most construction contractors (or their employees).”** There is no owner-builder exemption in Pennsylvania because there is nothing to be exempt from.

The one state registration that touches residential work is the Home Improvement Consumer Protection Act (HICPA), administered by the Office of Attorney General — and it reaches neither your project nor you. Two separate exclusions do the work, and it is worth knowing which is which:

Why HICPA registration is not part of your build

Exclusion	What the statute says	Authority
Your new house is not a “home improvement”	The definition lists what counts — repair, replacement, remodeling, and so on — and then says the term “does not include ... the construction of a new home. ” So HICPA does not apply to the build itself, and a contractor framing your new house is not doing home improvement work.	73 P.S. § 517.2, def. (2)(i)
Your own labor is not covered either	The term also excludes “any work performed without compensation by the owner of the owner's private residence or residential rental property.” You are not a contractor when you work on your own house.	73 P.S. § 517.2, def. (2)(v)

Why HICPA registration is not part of your build

Exclusion	What the statute says	Authority
And the small-volume floor	A person whose home improvements totaled less than \$5,000 in the previous taxable year is outside the definition of “contractor” entirely — worth knowing when you check a small sub's registration and find none.	73 P.S. § 517.2, def. of “contractor” (1)

The trap inside the good news

Because your project is outside HICPA, none of HICPA's protections come with it. On a remodel the statute would hand you a written contract with mandatory terms, a capped deposit and a registered, insured counterparty. On your new house you get none of that by operation of law — you get whatever you negotiate. The next table is the remedy: these are the terms the Commonwealth thought important enough to compel on a \$6,000 bathroom, and there is no reason to accept less on a \$60,000 framing package.

THE HICPA TERMS TO COPY INTO YOUR OWN SUBCONTRACTS

Terms HICPA compels on a remodel — and you must negotiate on a new build

Term	What it requires	HICPA cite
Deposit cap	On a contract over \$5,000, no more than one-third of the contract price , plus the cost of special-order materials if the contract designates them. HICPA makes taking more a prohibited act.	§ 517.9(10)
Liability insurance	Not less than \$50,000 covering personal injury and \$50,000 covering property damage, with the current amount stated in the contract. Ask for the certificate, not the assurance.	§ 517.7(a)(11)
Time-and-materials cap	Where the work is priced T&M, a written initial estimate before work starts, and a cost that may not exceed 10% above that estimate without a written change order signed by both.	§ 517.7(a)(8)
Written change orders	A description of the work, the materials, and specifications “that cannot be changed without a written change order signed by the owner and the contractor.”	§ 517.7(a)(7)
Named subcontractors	The names and addresses of all subcontractors known at signing. A post office box alone does not count as an address.	§ 517.7(a)(10)
Dates and deposit shown	Approximate start and completion dates; the down payment and the special-order materials cost listed separately .	§ 517.7(a)(6), (9)

HICPA is the Home Improvement Consumer Protection Act, Act 132 of 2008, 73 P.S. §§ 517.1—517.19. The registration itself is checked at the Office of Attorney General; a registration number is not a competency credential, and the Act says so.

TRADE LICENSING IS LOCAL — AND ALLEGHENY IS ITS OWN CASE

There is no statewide electrician, plumber or HVAC license in Pennsylvania. L&I again: “Some of Pennsylvania's 2,562 municipalities have established local licensure or certification requirements for contractors or construction trades people. Typically, these requirements pertain to home improvement contractors, electrical contractors (or electricians), and plumbing contractors (or plumbers).” There is no central registry to search — the municipality is the only authority on its own rules, which is why PA.4 sends you there.

Allegheny County plumbing is carved out of the UCC by statute

If you are building in Allegheny County — a “county of the second class” — your plumbing is not a UCC subject at all. Section 7210.501(a.1) provides that a municipality in such a county “**shall not administer and enforce plumbing code provisions**” of its UCC ordinance, and that the county retains authority to promulgate and enforce its own plumbing code under the Local Health Administration Law. The regulation repeats it: 34 Pa. Code § 403.21(a)(6)(i) says such a municipality “may not administer and enforce” the International Plumbing Code adopted by the chapter.

In practice that means a second permit, a second inspector and a second rulebook for the plumbing on your house, from the county health department rather than your municipality — and county plumber licensing that has nothing to do with the UCC. Budget the time; it is a genuine parallel track, not a formality.

WRITE DOWN WHAT YOU CONFIRMED

Everything above is statewide. These four answers are yours alone, and every later document in this kit depends on them.

Your enforcement picture

	Item	Date	Notes
☐	Municipality (township / borough / city) and county Municipality _____ County _____		
☐	Which of the six arrangements applies here (1-6 above) Path _____ Confirmed by _____		
☐	Who performs plan review and inspections — office or agency name Name _____		

Your enforcement picture

	Item	Date	Notes
☐	Local trade licensing: does the municipality require registered or licensed electricians or plumbers? Answer _____		

Sources — every Pennsylvania claim in this document (verified September 2026)

What this document states	Authority
The UCC applies to all buildings in the Commonwealth	35 P.S. § 7210.104(a)
Exclusions: agricultural, recreational cabin, repairs, alterations	35 P.S. § 7210.104(b)
Recreational cabin — seven-part definition	35 P.S. § 7210.103
Accessory structures under 1,000 sq ft; propane; manufactured housing	34 Pa. Code § 403.1(b)
On-lot sewage is governed by Chapter 73, not the UCC	34 Pa. Code § 403.21(e)
The five ways a municipality may administer and enforce	35 P.S. § 7210.501(b)
Allegheny County plumbing carve-out	35 P.S. § 7210.501(a.1); 34 Pa. Code § 403.21(a)(6)(i)
Opt-out: the applicant must obtain a certified third-party agency	34 Pa. Code § 403.103(b)
Opt-out: five required inspections named in the statute	35 P.S. § 7210.501(e)(1)
Opt-out: L&I covers only non-residential	34 Pa. Code § 403.103(g)
Code administrator may not have a financial interest	35 P.S. § 7210.502(c)
Final report to owner, builder and lender; CO filed with municipality	34 Pa. Code §§ 403.103(f), 403.65(e)
No state licensure for most construction contractors	PA L&I, Contractor Licensing page
HICPA excludes new-home construction and uncompensated owner work	73 P.S. § 517.2
HICPA deposit cap, insurance minimum, T&M cap, change orders	73 P.S. §§ 517.7(a), 517.9(10)

Every source cited here is free to read, but Pennsylvania keeps statutes and regulations on **two different websites**. A citation reading **Pa. Code** is a regulation — pacodeandbulletin.gov, by title and chapter. A citation reading **P.S.** is a statute, and it is **not on that site at all**; the Pa. Code home page says so outright. Statutes are at legis.state.pa.us → Unconsolidated Statutes, by year and act number — the Construction Code Act is Act 45 of 1999. **One warning:** every Pa. Code chapter prints the Pennsylvania Bulletin issue it is current through, and an amendment published later is already law. Read that line first. All text here was read at those sources, September 2026.